



DIGITAL CONTENT AGGREGATION AND LICENSING AGREEMENT

THIS AGREEMENT is entered into on this _____ day of _____ 2026 (the "Effective Date").

BY AND BETWEEN:

1. **LUDEVA PLC**, a public limited company incorporated under the Companies Act (Cap. 486 of the Laws of Kenya), with its registered office at Legacy Plaza, Police Road P.O Box 596-40300 Homabay Town with a Branch office at Cooperative Bank Building BuruBuru, Nairobi, Kenya (hereinafter referred to as the "**Aggregator**", which expression shall include its successors and permitted assigns);
2. **THE CREATOR / ARTIST** whose full legal name national identity/passport number and contact details are set out in **Schedule A** of this Agreement (hereinafter referred to as the "**Creator**", which expression shall include their heirs, executors, and permitted assigns).

The Aggregator and the Creator shall collectively be referred to as the "Parties" and individually as a "Party."

1. DEFINITIONS & INTERPRETATION

1.1)"Content" means any sound recordings, musical compositions, literary works, visual arts, videos, metadata, and associated promotional materials delivered by the Creator to the Aggregator under this Agreement.

1.2"Digital Platforms" means third-party digital service providers, streaming platforms, and download stores and local telecommunications value-added services).

1.3"Net Revenue" means the gross monies actually received by the Aggregator from Digital Platforms directly attributable to the exploitation of the Creator's Content, less banking fees, statutory taxes, currency conversion losses, and mobile money transaction charges.

2. GRANT OF RIGHTS (THE LICENSE)

2.1 Non-Exclusive License: The Creator hereby grants to the Aggregator a **non-exclusive**, revocable license to digitally distribute, transmit, publicly perform, and sub-license the Content to Digital Platforms worldwide.

2.2 Retention of Ownership: The Creator expressly retains **100% ownership** of all copyrights, master rights, publishing rights, and intellectual property inherent in the Content. This Agreement is a license only and does not constitute a transfer of ownership.

2.3 Name and Likeness: The Creator grants the Aggregator the right to use the Creator's professional name, approved likeness, logos, and biographical material solely for marketing, advertising, and promoting the Content.

3. FEES, ROYALTIES, AND PAYMENT TERMS

3.1 Revenue Split: The Aggregator shall pay the Creator **70%** of the Net Revenue accumulated from the distribution of the Content. The Aggregator shall retain **30%** as its management and administrative fee

3.2 Payment Schedule: Payments shall be disbursed to the Creator on a **[Monthly or Quarterly]** basis within (90) days following the end of each accounting period, provided the accumulated balance meets the minimum payout threshold of **KES 10,000**

3.3 Method of Payment: All payouts shall be made in Kenya Shillings (KES) via the banking or mobile





money (e.g., M-Pesa) channels specified by the Creator in **Schedule A**.

3.4 Taxes: All payments are subject to applicable Kenyan withholding tax laws. The Aggregator will deduct statutory withholding tax where legally required and provide the Creator with a tax withholding certificate.

4. TERM AND TERMINATION

4.1 Duration: This Agreement shall commence on the Effective Date and shall continue until and unless either party withdraws from the contract in writing.

4.2 Termination for Convenience: Either Party may terminate this Agreement at any time after the fifth year by giving thirty (30) days' prior written notice to the other Party.

4.3 Takedown Obligations: Upon receipt of a termination notice, the Aggregator shall issue digital takedown requests to all sub-licensed Digital Platforms within **twenty-one (21) business days**. The Aggregator is not liable for delayed removals caused entirely by the third-party platforms' internal processing timelines.

5. CREATOR WARRANTIES AND INDEMNIFICATION

5.1 Warranty of Originality: The Creator guarantees and warrants that they are the sole lawful owner or authorized license holder of the Content; that the Content is entirely original and does not infringe upon the copyright, trademark, or moral rights of any third party (including unauthorized musical samples or stolen visual graphics).

5.2 Indemnification: The Creator agrees to defend, indemnify, and hold harmless Ludeva PLC, its directors, and employees against any loss, damage, liability, cost, or legal fees arising out of a breach of the warranties outlined in Section 5.1.

6. GOVERNING LAW AND DISPUTE RESOLUTION

6.1 Governing Law: This Agreement shall be governed by, construed, and enforced in accordance with the **Laws of the Republic of Kenya**.

7.2 Dispute Resolution: In the event of a dispute, the Parties shall attempt to resolve the matter amicably through negotiation. If unresolved within thirty (30) days, the dispute shall be referred to mediation under the Kenyan High Court Alternative Dispute Resolution (ADR) framework before escalating to the courts of Kenya.

IN WITNESS WHEREOF, the Parties have executed this Agreement on the day and year first written above.

SIGNED for and on behalf of LUDEVA PLC:

Name	Signature

Title: Head of Content Department





SIGNED by the CREATOR:

Legal Name	Stage/ Artistic Name	Signature

SCHEDULE A: CREATOR INFORMATION FORM

Field	Creator Information Details
Full Legal Name	
National ID / Passport No.	
KRA PIN (for tax purposes)	
Postal & Physical Address	
Email Address	
Phone Number	
Preferred Payout Channel	M-Pesa / Bank Transfer (circle one)
Account Name / Number	

NB; Provide metadata information and a clear and attractive artwork for marketing and promotion.

